Calendar Line 2
Case Name: ***Marybeth Lakso v. The Estate of Gary Lynn, et al.***
Case No. 24CV430597

PLAINTIFF'S MOTION TO TAX COSTS

Defendants are prevailing parties following entry of summary judgment and are entitled to recover allowable costs under Code of Civil Procedure section 1032. The Court previously found Defendants' Code of Civil Procedure section 998 offers valid. The remaining issue concerns the amount of expert witness fees recoverable under Code of Civil Procedure section 998(c)(1).

Expert witness fees are recoverable only to the extent they were actually incurred and reasonably necessary to the litigation. Once Plaintiff raised specific objections regarding duplication, overlap, and lack of task-level allocation, Defendants bore the burden of providing sufficient evidence to permit meaningful judicial evaluation of reasonableness and necessity.

While Defendants have submitted billing summaries and declarations, the record does not adequately distinguish (1) the allocation of expert work among overlapping experts, or (2) the extent to which expert work was tied to issues remaining in dispute following the June 6, 2025 stipulation by the co-defendant physician. The Court does not find the expert work categorically unnecessary, but the evidentiary showing is insufficient to support full recovery of the amounts claimed.

Accordingly, the Court exercises its discretion under section 998(c)(1) to reduce the claimed expert witness fees as follows:

1. Orthopedic Experts (Atkin and Bray)

Plaintiff's objections regarding causation-focused testimony and limited demonstrated necessity are well-taken in part. However, the Court does not find the services entirely outside the scope of reasonable trial preparation.

Reduction methodology: 50% reduction of combined fees.

- Claimed: $61,325.00
- Allowed: $30,662.50

2. Administrative Experts (Coleman and Lahana)

The record demonstrates substantial overlap in subject matter, materials reviewed, and deposition preparation. Defendants have not adequately distinguished the necessity of retaining two similarly situated administrative experts at full rates.

Allocation methodology:

- Allow Coleman in full (as primary expert)

- Reduce Lahana by 75% for duplication/overlap
- Coleman claimed: $15,680.00 → Allowed: $15,680.00
- Lahana claimed: $37,683.00 → Allowed: $9,420.75

3. Neuropsychology Expert (Thaler)

The objection does not establish that the corrected fee is unreasonable or unnecessary on this record.

- Claimed/Corrected: $9,200.00
- Allowed: $9,200.00

4. Resulting Expert Fee Award

- Orthopedic experts: $30,662.50
- Coleman: $15,680.00
- Lahana: $9,420.75
- Thaler: $9,200.00

TOTAL ALLOWED EXPERT WITNESS FEES: $64,963.25

5. General Findings

The Court notes Defendants were not required to maintain ideal billing records, but the lack of task-level allocation materially limits the Court's ability to fully credit the amount sought, and this uncertainty is appropriately resolved by reduction rather than denial where expert services were clearly utilized in the litigation.

The Court further notes that its ruling is grounded primarily in the statutory requirement of reasonableness under section 998(c)(1), not in any punitive or equitable adjustment. Accordingly,

Plaintiff's Motion to Tax Costs is GRANTED IN PART consistent with the reductions above and otherwise DENIED. Defendants are awarded expert witness fees in the total amount of $64,963.25, plus remaining allowable costs.

Defendant to prepare the final order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

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Calendar Line 6
Case Name: *Darlene Garza et al. v. Ford Motor Company et al.*
Case No.: 25CV475161

PETITION TO COMPEL ARBITRATION

Plaintiffs Darlene Garza and David Ruben Garza ("Plaintiffs") purchased a 2019 Ford Edge ("Subject Vehicle") in April 2021 from Lithia Ford Lincoln of Fresno ("Dealership"). (Complaint at ¶ 7.) Plaintiffs delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiffs allege that Dealership "breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 49.) Plaintiffs sued Dealership and Ford Motor Company in September 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract ("RISC") signed by Plaintiffs and Dealership when Plaintiffs purchased the Subject Vehicle. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the Federal Arbitration Act ("FAA") governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:21-7:1.) The arbitration provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex. A at p. 7.) Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's